

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To amend the law relating to the issue of faculties out of ecclesiastical courts; to make better provision for giving effect to faculties so issued; to authorise the sale of books in certain parochial libraries under a faculty; to authorise archdeacons to issue certificates in certain cases; and for other purposes connected therewith. [13th July 1938.]

1.—(1) For the purposes of any proceeding for obtaining a faculty in the ecclesiastical court of any province or diocese, the archdeacon of the archdeaconry in which the parish concerned is situate shall be deemed to have an interest as such, and any person whose name is entered on the electoral roll of the parish concerned as a non-resident elector shall be deemed to have an interest as though he were a parishioner of that parish. Archdeacon and non-resident electors to be deemed to have an interest in faculty proceedings.

(2) If the archdeaconry be vacant or the archdeacon be incapacitated by absence abroad or illness from exercising or fulfilling the rights or duties conferred or imposed upon him by this Measure, such other person as the bishop shall appoint in that behalf in writing shall have power to act in the place of the archdeacon for the purposes of this Measure in any particular case.

2. In any such proceeding, whether the archdeacon is a party thereto or not, the court may— Functions of archdeacons in faculty cases.

(a) decree the issue of a faculty, subject to a condition requiring the work authorised thereby or

any part thereof to be carried out under the supervision of the archdeacon or of any other person nominated by the court in that behalf; or

- (b) direct that, in default of the incumbent and churchwardens carrying out the work so authorised or any part thereof, a faculty shall issue to the archdeacon authorising him to carry out the same.

Payment of costs by party responsible for breach of law.

3.—(1) If in any proceeding for a faculty, whether opposed or not, it appears to the court that any person being a party to the proceeding was responsible wholly or in part for the introduction into or removal from a church of any articles without the necessary faculty, or for the execution of any work in a church without the necessary faculty, the court may order the whole or any part of the costs and expenses of the proceeding or consequent thereon (so far as such costs and expenses have been occasioned by such introduction, removal or unlawful execution as the case may be) to be paid by such person.

(2) In any such proceeding the court may upon the application of any party to the proceeding and by way of special citation add as a further party to the proceeding any person alleged to be so responsible or partly responsible and not already a party and notwithstanding that such person resides out of the diocese.

Sale of books in parochial libraries under a faculty.
7 Anne, c. 14.

4.—(1) Notwithstanding anything to the contrary contained in section ten of the Parochial Libraries Act, 1708, any book in a parochial library appropriated to the use of the minister of any parish or place within the operation of that Act may be sold under the authority of a faculty issuing out of the consistory court of the diocese in which the parish concerned is situate, and in the case of every sale so authorised the proceeds of sale shall be applied for such of the ecclesiastical purposes of the parish as in such faculty may be directed.

(2) Any question whether a library is within the said Act and is so appropriated shall be finally determined by the Charity Commissioners.

Advisory committees.

5. In every diocese there shall be an advisory committee for the care of churches appointed by the bishop (in this Measure referred to as "the advisory committee")

whose duty it shall be to give advice to intending applicants for faculties, and to advise the chancellor (if required) or the archdeacon before the grant of a faculty or the issue of a certificate.

6.—(1) Every application received by the registrar of a diocese from the incumbent and churchwardens of a parish, supported by a resolution of the parochial church council, for authority to carry out—

Archdeacons
to issue
certificates
in certain
cases.

- (a) repairs to a church not involving any substantial alteration in the structure thereof; or
- (b) the redecoration of a church

shall be referred by the registrar to the archdeacon of the archdeaconry in which the church is situate, and it shall be the duty of the archdeacon, as he thinks proper, after considering the matter, either—

- (a) with the approval of the advisory committee, to issue a certificate authorising the execution of the work proposed; or
- (b) to direct that an application shall be made to the consistory court for a faculty with regard thereto.

(2) A certificate issued by an archdeacon in pursuance of this section shall be a sufficient authority for the execution of the proposed work without a faculty.

(3) A copy of any certificate issued by an archdeacon under this section shall be transmitted by him to the registrar of the diocese and filed in the diocesan registry.

(4) The procedure laid down by this section may be followed at the discretion of the chancellor with regard to any other application which in his opinion is unlikely to give rise to any controversy or dissatisfaction in the parish concerned and is not of sufficient importance to justify the expense of proceedings for a faculty.

7.—(1) A Rule Committee, constituted in manner laid down by the Schedule hereto, may make rules for—

Rules.

- (a) regulating the manner in which the plans and specifications of any work for which a faculty is required shall be submitted to the advisory committee and the manner in which the report thereon of the advisory committee shall be submitted to the ecclesiastical court concerned;

- (b) regulating the circumstances and manner in which the judge of any ecclesiastical court may of his own motion summon before such court and examine a member or members of the advisory committee or any other person whose evidence the judge considers relevant and who is willing to give evidence;
- (c) regulating the time or respective times within which the fee or any part of the fee payable in respect of the faculty required shall be paid;
- (d) the making of returns to faculties certifying the manner in which the works authorised thereby have been or are being carried out;
- (e) regulating the fees payable to the registrar in respect of the duties imposed on him by section six of this Measure; and
- (f) otherwise for carrying this Measure into effect.

(2) Every rule purporting to be made in pursuance of this section shall forthwith be laid before both Houses of Parliament, and if either House of Parliament within the next subsequent twenty-eight days on which that House has sat resolves that any such rule shall be annulled such rule shall forthwith be void, but without prejudice to the validity of anything previously done thereunder or to the making of a new rule.

Extent and
short title.

8—(1) This Measure shall extend to the whole of the provinces of Canterbury and York, except the Channel Islands and the Isle of Man.

(2) This Measure may be cited as the Faculty Jurisdiction Measure, 1938.